

Plaintiffs' counsel are ordered to submit a compliance statement, preferably a declaration of the distributions by the administrator, at least ten court days before the compliance hearing date. Five percent of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

13. 1:30 PM CASE NUMBER: C23-02878
CASE NAME: GUADALUPE HARO VS. YEZENIA HARO
COMPLETE CONSOLIDATION OF CASE NO. C23-02878 WITH CASE NO. C26-00880
FILED BY: ZCA HOMES LLC
TENTATIVE RULING:

These two actions concern ownership of the same residential property. Defendant and plaintiff in intervention ZCA Homes LLC moves to consolidate the two actions for all purposes. The motion is unopposed, and it is well taken. The motion is therefore **granted**. The consolidated case will proceed under the older docket number (C23-02878) and will remain assigned for all purposes to Department 16.

14. 1:30 PM CASE NUMBER: C23-03161
CASE NAME: ALISCHA WILSON VS. INTEX RECREATION CORP.,
PERLIMINARY APPROVAL OF CLASS ACTION SETTLEMENT ADVANCED
FILED BY:
TENTATIVE RULING:

In its order of July 22, the Court directed the attorneys to resubmit an amended stipulation by August 19. No such amended stipulation has been filed. The motion for preliminary approval is therefore **continued** to September 30, 2026, at 9:00 a.m. The amended stipulation must be filed by September 18. If no stipulation can be reached, the attorneys should file a joint statement to the Court by that date, identifying the point(s) of disagreement and advising on the status of the proposed settlement.

15. 1:30 PM CASE NUMBER: C24-01011
CASE NAME: IDAHO PACIFIC LUMBER COMPANY, INC. VS. BIARRITZ RESOURCES, LLC
FILED BY IDAHO PACIFIC LUMBER COMPANY, INC.
FILED BY:
TENTATIVE RULING:

The motion for summary judgment or, in the alternative, summary adjudication, filed by plaintiff, Idaho Pacific Lumber Company, Inc. ("IdaPac") against The Cincinnati Insurance Company ("CIC"), is **denied**, as discussed below.

I. Background

CY Pittsburg Investors, LLC ("Owner") held title to the real property located at 1001 and 999 Center Drive, Pittsburg, California 94565 (identified as assessor's parcel number 086-100-047) from November, 2022 until July, 2024. (SSUMF, Fact. No. 1, and defendants' responses.) In February 2023,